This Non-Disclosure Agreement ("**Agreement**") is entered into on this _____ ("**Effective Date**"):

BY AND BETWEEN

BAYSLOPE BUSINESS SOLUTIONS PRIVATE LIMITED (GST No. 06AAGCB8983N1ZW) with its principal place of business at Level 10, Unitech Cyber Park, Tower B, Sector 39, Gurugram, Haryana 122003, hereinafter referred to as the "**First Party**", which expression shall unless repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the FIRST PART;

AND

[.], a company incorporated under the [.] and having its registered office at [.] (hereinafter referred to as the "**Second Party**", which expression shall unless repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the SECOND PART.

"**Parties**" shall mean collectively the First Party and Second Party and "**Party**" means each of the First Party and the Second Party individually.

WHEREAS:

A. WHEREAS the Parties are to commence negotiations in relation to the Services (as defined below);

B. WHEREAS in connection with the Services, the Parties recognise that it may be necessary or desirable for either of the Parties to provide the other Party with Confidential Information;

C. WHEREAS the Disclosing Party (as defined below) wishes to ensure that such Confidential Information (as defined below) disclosed to the Recipient (as defined below) in the course of the discussions regarding the Services remains confidential and is not used by the Recipient for any purpose other than the Permitted Purpose (as defined below); and

D. WHEREAS this Agreement sets out the terms upon which the Disclosing Party agrees to provide the Recipient with such Confidential Information.

NOW, THEREFORE, in consideration of the mutual agreements, covenants, representations and warranties set forth in the Agreement, and for other good and valuable consideration, the receipt and sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows:

1. Definitions and Interpretation

1.1. Definitions

In the Agreement, (i) capitalised terms defined by inclusion in quotations and / or parenthesis have the meanings so ascribed; and (ii) the following terms shall have the meanings assigned to them herein below:

Disclosing Party means the Party disclosing Confidential Information;

Permitted Purpose means:

(a) Providing of the Services; and
(b) Performing obligations committed pursuant to the entering into of definitive agreements in connection with the Services;

Recipient means the Party receiving Confidential Information; and

Representative means, in respect of a company, its associated companies, subsidiary undertakings, parent undertakings, shareholders, directors, employees, advisers, agents and consultants.

Services means various projects and services which maybe provided by the First Party to the Second Party including but not limited to providing legal advice and/or ii) enhancing the Second Party's technology or products and/or iii) furthering the Second Party's business and/or iv) pursuing a business relationship with the Second Party.

1.2. **Interpretation**

1.2.1. The terms referred to in this Agreement shall, unless defined otherwise or inconsistent with the context or meaning thereof, bear the meanings ascribed to them under the relevant statute / legislation.

1.2.2. Words denoting the singular shall include the plural and words denoting any gender shall include all genders.

1.2.3. Headings, subheadings, titles, subtitles to clauses, sub-clauses and paragraphs are for information only and shall not form part of the operative provisions of this Agreement or the annexures hereto and shall be ignored in construing the same.

1.2.4. References to days, months and years are to calendar days, calendar months and calendar years, respectively.

1.2.5. Unless otherwise specified, time periods within or following which any act is to be done shall be calculated by excluding the day on which the period commences and including the day on which the period ends and by extending the period to the next business day if the last day of such period is not a business day; and whenever any action to be taken under this Agreement is required to be taken on a day other than a business day, such action shall be taken on the next business day.

1.2.6. Words "directly or indirectly" mean directly or indirectly through one or more intermediary persons or through contractual or other legal arrangements, and "direct or indirect" have the correlative meanings.

1.2.7. Any reference to "writing" shall include printing, typing, lithography, transmissions by facsimile or in electronic form (including e-mail) and other means of reproducing words in visible form in any medium.

1.2.8. The words "include" and "including" are to be construed without limitation.

1.2.9. Any reference to a person includes a reference to a firm, company, other body corporate or legal entity.

1.2.10. If there is any conflict or inconsistency between a term in the body of this Agreement and a term in any of the schedules or any other document referred to or otherwise incorporated in this Agreement, the term in the body of this Agreement shall take precedence.

1.2.11. A reference to a consent or approval of a Party means the prior written consent or approval of that Party in its absolute and unfettered discretion, except as provided herein.

2. Confidential Information

2.1 The Disclosing Party and/or its any of its Representatives may disclose and make available to the Recipient, (i) proprietary information of whatever nature relating to the Services or the Disclosing Party to the Recipient or any of its Representatives whether in writing, orally or pursuant to visits to premises and in any form or medium in which such information may be recorded or kept; (ii) including trade secrets, technical data, software (source and object code), algorithms, business strategies, IP assets (patents, trademarks, know-how), and any data disclosed under written or implied obligations of confidentiality; (iii) analyses, compilations, studies and other material prepared by the Recipient and/or its Representatives which contain, reflect or are otherwise generated from the information described in (i) above; and (iii) the existence and contents of this Agreement and the existence and contents of the discussions between the Parties about the Services (collectively, "**Confidential Information**").

2.2 Confidential Information shall exclude Confidential Information which:

2.2.1 is or becomes publicly available (other than as a direct or indirect result of any breach of this Agreement); or

2.2.2 is known to the Recipient before the date it is disclosed by the Disclosing Party or its Representatives; or is lawfully obtained by the Recipient after that date, other than from a source which is connected with the Disclosing Party and/or its Representatives; or

2.2.3 is independently developed by the Recipient or its Representatives without the use or reference to any Confidential Information.

2.2.4 The burden of proving that information falls within an exclusion rests with the Recipient.

3. Non-Disclosure and Permitted Use

3.1 In consideration of the Disclosing Party agreeing to disclose Confidential Information to the Recipient or its Representatives, the Recipient undertakes to the Disclosing Party that the Recipient shall:

3.1.1 use the Confidential Information only for the Permitted Purpose set forth in this Agreement;

3.1.2 prevent the disclosure or dissemination of Confidential Information to any other person, without the prior written consent of the Disclosing Party except that the Recipient may disclose Confidential Information to its Representatives or who strictly need access to any Confidential Information ("**Authorised Recipients**") on a "need to know" basis in connection with the purposes set forth in this Agreement, on the condition that they themselves will not disclose, copy, reproduce or distribute it to any person who is not an Authorised Recipient;

3.1.3 advise those Authorised Recipients who access the Confidential Information of their obligations with respect thereto.

3.1.4 The Recipient shall ensure that all Authorised Recipients are bound by confidentiality obligations no less restrictive than those contained herein. The Recipient shall be liable for any breach of this Agreement by its Authorised Recipients.

3.1.5 The Recipient shall use at least the same degree of care to protect the Disclosing Party's Confidential Information as it uses for its own confidential information, but in no event less than reasonable care.

3.2 For the purposes of this Agreement, "**need to know**" means that the Authorised Recipient requires such Confidential Information to perform its responsibilities and for the purposes of furthering the Services, in accordance with the terms and conditions of this Agreement.

3.3 The Recipient may disclose Confidential Information to the extent required:

3.3.1 by any order of any court of competent jurisdiction or any competent judicial, governmental, regulatory or supervisory body;

3.3.2 by the rules of any listing authority, stock exchange or any regulatory or supervisory body with which the Recipient is bound to comply; or

3.3.3 by the laws or regulations of any country with jurisdiction over the affairs of the Recipient.

4. Return of Confidential Information

Promptly, following the earlier of (i) the termination of this Agreement in accordance with Clause 7.8 herein; or (ii) the written request of the Disclosing Party, Recipient

shall deliver to the Disclosing Party, or in the alternative, at the Disclosing Party's discretion, permanently remove or destroy all Confidential Information. The Recipient shall permanently delete all electronic files (including backups, metadata, emails) and shall certify in writing, within five (5) business days, that all such information has been returned or destroyed.

5. Remedies

Recipient acknowledges that money damages may be both incalculable and an insufficient remedy for any breach of this Agreement by the Recipient and/or any of its Representatives and/or any Authorised Recipient and that any such breach may cause the Disclosing Party irreparable harm. Accordingly, the Recipient also agrees that, in the event of any breach or threatened breach of this Agreement, the Disclosing Party, in addition to any other remedies at law or in equity it may have, shall be entitled to seek equitable relief, including injunctive relief and specific performance.

The Recipient shall indemnify and hold harmless the Disclosing Party against all losses, liabilities, costs, claims, and damages, including reasonable legal fees, arising from any breach of this Agreement by the Recipient or its Representatives.

6. Miscellaneous

6.1 Waiver

No failure on the part of the Disclosing Party to exercise, and no delay in exercising, any right or remedy hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any right or remedy hereunder preclude any other or a future exercise thereof or the exercise of any other right or remedy granted hereby, or by any related document, or by law.

6.2 Assignment

This Agreement, or any right or interest herein, shall not be assignable or transferable by any Party except with the prior written consent of the other Party.

6.3 No License

Nothing in this Agreement shall be construed as granting any license or rights to the Recipient under any patent, copyright, trade secret, or other intellectual property right.

6.4 Amendments

This Agreement may not be amended, modified or supplemented except by a written instrument executed by each of the Parties.

6.5 Entire Agreement

This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes any and all prior agreements, including letters of intent

and term sheets, either oral or in writing, between the Parties with respect to the subject matter herein.

6.6 Counterparts

This Agreement may be executed in one or more counterparts, each of which when so executed and delivered shall be deemed an original but all of which together shall constitute one and the same instrument and any Party may execute this Agreement by signing any one or more of such originals or counterparts. The delivery of signed counterparts by facsimile transmission or electronic mail in "portable document format" (".pdf") shall be as effective as signing and delivering the counterpart in person.

6.7 Costs and Expenses

The Parties shall each be responsible for their own costs and expenses (and those of their respective advisers) in connection with the preparation and negotiation of this Agreement and the supply and evaluation of the Confidential Information.

6.8 Governing Law and Dispute Resolution

This Agreement shall be subject to and be interpreted in accordance with the laws of the US state of Delaware.
Any dispute, controversy or claim arising out of, relating to, or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be finally resolved by arbitration. The arbitration shall be conducted in accordance with the rules of the Singapore International Arbitration Centre (SIAC) or the International Chamber of Commerce (ICC), as mutually agreed by the Parties.
The seat (legal place) of arbitration shall be Singapore or any other neutral venue agreed by the Parties. The language of arbitration shall be English. The arbitral tribunal shall consist of a sole arbitrator, mutually appointed by the Parties; failing such agreement, the arbitrator shall be appointed in accordance with the applicable institutional rules.
The arbitral award shall be final and binding on the Parties, and may be enforced in any court of competent jurisdiction. Each Party shall bear its own legal costs unless otherwise determined by the arbitral tribunal in its award.

6.9 Term and Termination

The obligations relating to trade secrets shall survive indefinitely. All other Confidential Information shall remain protected for a period of five (5) years from the Effective Date or three (3) years after termination of this Agreement, whichever is later.

6.10 Enforceability

If any provision of this Agreement shall be held invalid or unenforceable, such provision shall be deemed deleted from this Agreement and replaced by a valid and enforceable provision, which in so far as possible achieves the Parties' intent in agreeing to the original provision. The remaining provisions of this Agreement shall continue in full force and effect to the maximum extent permitted by law or equity.

6.11 Authority

Each Party warrants that it has the authority to enter into this Agreement.

6.12 Survival

The early termination of this Agreement shall in no event terminate or prejudice: (i) any right or obligation arising out of or accruing under this Agreement attributable to events or circumstances occurring prior to such termination; (ii) any provision which by its nature is intended to survive termination, including the provisions of Clause 2, (*Confidential Information*), Clause 3 (*Non-Disclosure and Permitted Use*), Clause 5 (*Remedies*) and Clause 6 (*Miscellaneous*).

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR HEREINABOVE WRITTEN

Signed and delivered for and on behalf of

[.]

By: [.]
Title: [.]

Signed and delivered for and on behalf of

[.]

By: [.]
Title: [.]